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OpenAI defeats radio host's lawsuit over allegations invented by ChatGPT

By **Mike Scarcella**

May 20, 2025 12:25 AM GMT+2 · Updated May 19, 2025



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May 19 (Reuters) - OpenAI has prevailed in a lawsuit in Georgia that accused the ChatGPT maker of defaming a radio host by fabricating allegations and a fictional lawsuit against him.

In a early test of legal claims involving false information generated by artificial intelligence, Judge Tracie Cason of Gwinnett County Superior Court ruled that plaintiff Mark Walters had not shown he was defamed and said OpenAI's chatbot ChatGPT puts users on notice that it can make errors.

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OpenAI in a statement welcomed the order and said it appreciated the judge's "careful decision and its findings about our efforts to responsibly educate users and improve our models."

The company has denied any wrongdoing.

Walters, a radio host who advocates for firearms rights, sued OpenAI in 2023, claiming ChatGPT responded to a reporter's query about gun-related litigation by inventing a fictional case against him.

The reporter, editor of a website called AmmoLand.com, determined that the details were false. The reporter is not a party in the lawsuit.

Walters told the court in a filing that ChatGPT's statements about him "were complete fiction and they were obviously defamatory." He pointed to OpenAI's disclaimers about being prone to error as evidence that the company was aware it circulates false information.

The judge said Walters failed to show that OpenAI's statements about him were negligent or made with "actual malice," a key legal standard in defamation lawsuits.

"OpenAI's 'industry-leading efforts' to reduce errors of this kind and its extensive warnings to users that errors of this kind could occur negate any possibility that a jury could find OpenAI acted with actual malice here," Cason wrote.

The case is Walters v OpenAI LLC, Superior Court of Gwinnett County, State of Georgia, No. 23-A-04860-2.

For plaintiff: John Monroe of John Monroe Law P.C.

For defendant: Theodore Boutrous Jr of Gibson, Dunn & Crutcher; and Matthew Macdonald of Wilson Sonsini Goodrich Rosati

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